

HOUSE BILL 1996

By Shaw

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 17, Part 4, relative to cannabis.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-418, is amended by adding the following new subsection:

(h)

(1) Notwithstanding another law to the contrary, and in recognition of the United States president's executive order rescheduling cannabis from Schedule I to Schedule III under federal law, it is an offense for any person to knowingly possess cannabis unless such substance was obtained directly from or pursuant to a diagnosis of a qualifying medical condition, as defined in § 68-7-101, made by a physician licensed under title 63, chapter 6 or chapter 9.

(2) A violation of this subsection (h) with respect to cannabis, tetrahydrocannabinol, or chemical derivatives thereof, is a Class A misdemeanor and must be punished as follows:

(A)

(i) For a violation in which the person possesses one (1) ounce or less, the court may impose a fine of not more than one hundred dollars (\$100), require the person to perform up to ten (10) hours of community service, or both. The court may not impose a period of confinement for possession of one (1) ounce or less of cannabis.

(ii) If a person upon whom a fine has been imposed under this subdivision (h)(2)(A) alleges indigency or otherwise fails to pay the fine, then the court shall determine whether the person has willfully refused to pay or has made bona fide efforts to legally acquire resources to pay. If the person has not willfully refused to pay and has made bona fide efforts to attempt to pay the fine imposed, then the court shall use its discretion regarding alternatives, including installment payments or additional community service.

(iii) An officer enforcing this subsection (h) must issue the person a citation in lieu of custodial arrest, pursuant to § 40-7-118.

(B) For a violation in which the person possesses more than one (1) ounce but less than one-half (1/2) pound, the court may impose a fine of not more than five hundred dollars (\$500), require the person to perform up to forty (40) hours of community service, or both.

(C) For second violation in which the person possesses more than one (1) ounce but less than one-half (1/2) pound, the court may impose a fine of not more than one thousand dollars (\$1,000), a period of confinement of not more than thirty (30) days, or both.

(D) For a third or subsequent violation in which the person possesses more than one (1) ounce but less than one-half (1/2) pound, the court may impose a fine of not more than two thousand five hundred dollars (\$2,500), a period of confinement of not more than more than six (6) months, or both.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to offenses occurring on or after that date and offenses for which prosecution is initiated on or after that date.